UNITED STATES OF AMERICA

BEFORE THE FEDERAL ENERGY REGULATORY COMMISSION

Midcontinent Independent System Operator, Inc.

Docket No. EL26-70-000

PUBLIC COMMENT OF A PULASKI COUNTY, ARKANSAS RESIDENT

I am a resident and electric customer in Pulaski County, Arkansas. I am not an attorney, engineer, utility expert, or energy professional. I am a mother, a ratepayer, and a citizen who began asking questions when large data-center development became a major issue in my community.

The more I have tried to understand how these projects are planned for and served, the more concerned I have become about whether ordinary customers have enough information to meaningfully participate in decisions that may affect our electric bills and infrastructure for decades.

I want to be clear that I am not opposed to technology or economic development. I understand that large projects can bring investment and opportunity. I simply believe that development on an extraordinary scale should come with equally strong transparency, accountability, reliable planning, and protections for existing customers.

That is why this FERC proceeding matters to me.

Arkansas enacted the Generating Arkansas Jobs Act in 2025. The Arkansas Public Service Commission reported in June 2026 that Entergy Arkansas, LLC is among the utilities approved for a Generating Arkansas Jobs Act rider, and the Commission's report includes estimated customer and residential bill impacts associated with strategic investments. For an ordinary customer, that makes utility policy decisions very real. They are not merely discussions among utilities, regulators, developers, and lawmakers. They can reach a family's monthly electric bill.

I have therefore tried to educate myself about our utility system, our Public Service Commission, transmission planning, generation, rate cases, and the unusually large electricity demands associated with data centers. It has not been easy.

Utility regulation is already extraordinarily complicated for a person without technical training. In proceedings I have tried to follow, I have encountered important information that is redacted or subject to protective treatment. Sometimes information that would help a citizen understand the assumptions, costs, risks, or planning behind a proposal is difficult or impossible for the public to evaluate.

I understand that legitimate confidential business information sometimes requires protection. I am not asking that every confidential detail be made public. But there is an important difference between protecting genuinely confidential information and leaving the public without enough information to understand what is

being planned, why it is needed, what it is expected to cost, and who bears the financial risk.

That distinction matters greatly when a new customer may require hundreds of megawatts of electricity.

The same concerns are playing out at the local level. For several months, residents of Pulaski County have attended Quorum Court meetings asking our elected officials to adopt reasonable safeguards for high-intensity digital infrastructure projects. Citizens have taken time away from work and family, studied documents, spoken during public comment, contacted officials, and tried to understand technical issues involving electricity, water, noise, emergency services, infrastructure, and land use.

It can be discouraging to watch ordinary residents work this hard simply to understand and have a voice in decisions of this magnitude. At times, it feels as though citizens enter these discussions with far less information and far fewer resources than utilities and large corporate customers. I do not believe economic development and protecting residents have to be opposing goals. But when the public cannot see enough of the information underlying major infrastructure decisions, it becomes much harder to have confidence that the risks and costs are being distributed fairly.

On September 15, 2026, the Arkansas General Assembly's Joint Committee on Energy held a public meeting addressing data-center development. The Arkansas Legislature has made the meeting video and materials publicly available. I respectfully encourage the Commission and its staff to review that hearing because it offers a useful view of the questions now being raised in Arkansas about the scale of data-center electricity demand, infrastructure, affordability, reliability, and customer protections.

What struck me most was not that everyone agreed. They did not. What struck me was how many fundamental questions are still being asked while planning for very large new loads is already moving forward.

That brings me directly to this proceeding.

I appreciate that the Commission's June 18, 2026 order in Docket No. EL26-70-000 addresses issues including rapid growth in large loads, transparency, Network Upgrade costs, load forecasting, cost responsibility, and the potential for cost shifting. Those concerns make sense to an ordinary ratepayer because they ultimately determine who carries the financial consequences of new infrastructure.

From my perspective, the public should be able to understand some basic questions when an exceptionally large new customer seeks service:

- How much electricity is the customer requesting?
- What new transmission facilities or Network Upgrades are needed because of that request?
- What are those upgrades expected to cost?
- Who is financially responsible for those costs?
- What financial commitments must the large customer make before major infrastructure is constructed?
- What happens if the project is delayed, substantially downsized, or never built?
- What prevents costs created primarily to serve that customer from later being shifted to existing customers?

- How can regulators and the public verify those protections while legitimate confidential information remains protected?

I recognize that the answers may involve complicated engineering, market rules, contracts, and jurisdictional boundaries. I do not expect FERC to make those subjects simple. I am asking FERC to make the consequences understandable.

I respectfully encourage meaningful public disclosure of the amount of new large load seeking transmission service, the Network Upgrades identified to serve those loads, the expected costs associated with those upgrades, and the general framework for assigning financial responsibility, while still protecting genuinely confidential information.

I also encourage strong financial protections when infrastructure is constructed in anticipation of a new large load. If a project does not materialize as expected, existing customers should not automatically become the financial backstop for investments undertaken primarily to serve that project.

The Commission's concern about speculative or uncertain large-load requests is particularly important. When a single proposed customer can represent hundreds of megawatts of demand, inaccurate, duplicated, or insufficiently committed forecasts can have enormous consequences for infrastructure planning. Those risks deserve careful scrutiny before customers are asked to bear long-term costs.

If a large-load customer receives specialized treatment because it represents that its demand can be curtailed, managed, delayed, or otherwise made flexible during periods of system stress, those commitments should be clear and enforceable. Planning assumptions should match the obligations that actually exist.

I also hope the Commission continues to consider the public-participation problem created when information is technically available but practically inaccessible. A docket can be public and still be very difficult for an ordinary person to understand. Redactions, confidential exhibits, specialized terminology, and fragmented filings can make it nearly impossible for a citizen to see the complete picture. Public summaries of the most important assumptions, costs, risks, and customer protections would make participation far more meaningful without requiring disclosure of legitimate trade secrets.

Finally, I hope FERC remembers who ultimately lives downstream from these decisions. Most people will never understand transmission tariffs, cost-allocation formulas, Network Upgrade classifications, interconnection studies, or utility riders. But we understand our electric bills. We understand when basic household costs increase. And we understand that infrastructure built today may still be affecting our communities and our children long after the companies, projects, and public officials involved have changed.

I have a young daughter. When I started looking into these issues, I was primarily worried about a data center proposed near my community. The more I have learned, the more my concern has grown beyond one project. I am concerned about what kind of electric system we are building for her generation and who will inherit the financial consequences of the decisions being made today.

I do not believe economic development and protecting ordinary families have to be competing goals. Large customers can succeed. Utilities can build infrastructure that is demonstrably needed. Communities can benefit from investment. But ordinary customers should be able to see enough of the process to understand what is happening, and they should not be expected to carry financial risks created primarily for very large new

customers.

I respectfully ask the Commission to keep transparency, cost responsibility, reliable planning, and protection of existing customers at the center of this proceeding.

Thank you for providing the public an opportunity to participate and for considering the perspective of an ordinary Arkansas customer who is simply trying to understand where these costs and risks ultimately land.

Respectfully submitted,

Individual resident and electric customer
Pulaski County, Arkansas
Identifying and contact information provided through FERC eFiling.

Publicly Available References

Federal Energy Regulatory Commission, Order Instituting Proceeding Under Section 206 of the Federal Power Act, Docket No. EL26-70-000 (issued June 18, 2026).

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Arkansas General Assembly, Act 373 of 2025, Generating Arkansas Jobs Act of 2025.

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Arkansas Public Service Commission, Annual Generating Arkansas Jobs Act Report 2026 (June 30, 2026).

https://www.arkleg.state.ar.us/Home/FTPDocument?path=%2FAssembly%2FMeeting+Attachments%2F000%2F27977%2FExhibit+H.17.c+-+PSC+-+Annual+Generating+Arkansas+Jobs+Act+Report+2026.pdf

Arkansas General Assembly, Joint Committee on Energy, September 15, 2026 meeting record, agenda materials, and video.

https://arkleg.state.ar.us/Committees/MeetingsPast?code=510

Pulaski County Quorum Court, September 22, 2026 meeting video and agenda index, including Item 26-I-56A concerning high-intensity digital infrastructure.

https://pulaskicountyar.new.swagit.com/videos/401863